

Central Valley Regional Water Quality Control Board

9 December 2015

WDID No. 5A321018001

Mr. Tom Vannoy
Whitehawk Ranch Mutual Water Co.
PO Box 147
Clio, CA 96107-0147

CERTIFIED MAIL:
7013 0600 0002 4315 6820

NOTICE OF APPLICABILITY, WATER QUALITY ORDER NO. 2014-0153-DWQ-R5194, WHITEHAWK RANCH MUTUAL WATER COMPANY, WASTEWATER TREATMENT AND DISPOSAL SYSTEM, CLIO, PLUMAS COUNTY

Whitehawk Ranch Mutual Water Company (Whitehawk Ranch MWC), wastewater treatment and disposal system (Facility) is currently regulated under individual Waste Discharge Requirements (WDRs) Order 92-127. The WDRs were adopted on 26 June 1992. Whitehawk Ranch MWC hereafter referred to as the Discharger.

Based on the findings of the original WDRs, recent self-monitoring reports and communication with the Facility's operator, the facility treats and disposes of less than 100,000 gallons of wastewater per day, and is therefore eligible for coverage under the general and specific conditions of State Water Resources Control Board (State Water Board) Water Quality Order 2014-0153-DWQ *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (General Order). This letter serves as formal notice that the General Order is applicable to your facility and the wastewater discharge described below. You are hereby assigned General Order 2014-0153-DWQ-R5194 for your facility.

A copy of the General Order is enclosed. You can also find the General Order on the State Water Board's website at:

http://www.waterboards.ca.gov/board_decisions/adopted_orders/water_quality/2014/wqo2014_0153_dwq.pdf

You should familiarize yourself with the entire General Order and its attachments enclosed with this letter, which prescribes mandatory discharge and monitoring requirements. Sampling, monitoring, and reporting requirements that are applicable to your treatment and disposal methods must be completed in accordance with the sections of the General Order and the attached Monitoring and Reporting Program (MRP). This MRP was developed after consideration of your treatment system infrastructure and site conditions described in the attached Technical Memorandum.

REGULATORY BACKGROUND

The Discharger's wastewater treatment and disposal system is currently regulated under the individual WDR 92-127. The WDR was adopted on 26 June 1992 and is due for an update.

FACILITY AND DESCRIPTION

Whitehawk Ranch MWC is located in Section 31, T22N, R13E, MDB&M with surface water drainage to Sulphur Creek, a tributary to the Middle Fork Feather River, as shown on Attachment A. Whitehawk Ranch MWC has been established as the entity responsible for the operation and maintenance of the wastewater treatment system for Whitehawk Ranch. The community system consists of gravity flow lines, a central septic tank, package treatment plant, leachfields and land application area (seasonal spray irrigation).

This is an existing facility; therefore enrollment under the General Order is categorically exempt from the California Environmental Quality Act (CEQA) pursuant to California Code of Regulations, title 14, section 15301 which applies to ongoing or existing projects.

FACILITY SPECIFIC REQUIREMENTS

The Discharger will maintain exclusive control over the Discharge, and shall comply with the terms and conditions of this NOA and the General Order 2014-0153-DWQ-R5194, with all attachments.

The General Order states in Section B.1.L that the discharger shall comply with the setbacks as described in Table 3. The following applicable setback requirements from Table 3, for which the Discharger shall comply, are summarized below:

Table 1: Summary of Wastewater System Setbacks

Applicable Setback Requirements					
Equipment or Activity	Domestic Well	Flowing Stream ^a	Ephemeral Stream Drainage ^b	Property Line	Lake or Reservoir ^d
Septic Tank, Aerobic Treatment Unit, Treatment System, or Collection System ^e	150 ft. ^y	50 ft. ^c	N/A	5 ft. ^c	N/A
Leach Field ^f	100 ft. ^{o,c}	100 ft. ^c	N/A	5 ft. ^c	N/A
LAA (disinfected sec-2.2 or sec-23 recycled water) ^h	100 ft. ^r	50 ft.	50 ft.	100 ft. ^x	200 ft.

LAA denotes Land Application Area. Sec denotes secondary.

^a A flowing stream shall be measured from the ordinary high water mark established by fluctuations of water elevation and indicated by characteristics such as shelving, changes in soil character, vegetation type, presence of litter or debris, or other appropriate means.

^b Ephemeral Stream Drainage denotes a surface water drainage feature that flows only after rain or snow-melt and does not have sufficient groundwater seepage (baseflow) to maintain a condition of flowing surface water. The drainage shall be measured from a line that defines the limit of the ordinary high water mark (described in "a" above). Irrigation canals are not considered ephemeral streams drainage features. The ephemeral stream shall be a "losing stream" (discharging surface water to groundwater) at the proposed wastewater system site.

^c Setback established by California Plumbing Code, Table K-1.

^d Lake or reservoir boundary measured from the high water line.

^e Septic Tank, Aerobic Treatment Unit, Treatment System, or Collection System addresses equipment located below ground or that impedes leak detection by routine visual inspection.

^f Leach Field includes all subsurface dispersal systems, including mound systems except seepage pits.

^h Disinfected secondary-2.2 recycled water is defined in California Code of Regulations, title 22, section 60301.220. Disinfected secondary-23 recycled water is defined in California Code of Regulations, title 22, section 60301.225.

^o California Well Standards, part II, section 8. Site-specific conditions may allow reduced setback or require an increased setback. See discussion in Well Standards.

^r Setback established by California Code of Regulations, title 22, section 60310(c)

- ^x Setback established by California Code of Regulations, title 22, section 60310(f).
^y Setback established by Onsite Wastewater Treatment System Policy, section 7.5.6.

Failure to comply with the requirements in the documents could result in an enforcement action as authorized by provisions of the California Water Code. Discharge of wastes other than those described in this NOA is prohibited. If the method of waste disposal changes from that described in this NOA, you must submit a new Report of Waste Discharge describing the new operation.

The required annual fee specified in the annual billing from the State Water Board shall be paid until this NOA is officially terminated. You must notify this office in writing if the discharge regulated by the General Order ceases, so that we may terminate coverage and avoid unnecessary billing.

The Central Valley Water Board has gone to a Paperless Office System. All regulatory documents, MRPs, submissions, materials, data, monitoring reports, and correspondence should be converted to a searchable Portable Document Format (PDF) and submitted electronically. Documents that are less than 50MB should be emailed to: centralvalleyredding@waterboards.ca.gov.

Documents that are 50MB or larger should be transferred to a disc and mailed to the appropriate regional water board office, in this case 364 Knollcrest Drive, Suite 205, Redding, CA 96002.

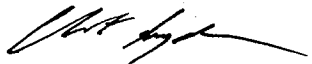
To ensure that your submittals are routed to the appropriate staff, the following information block should be included in any email used to transmit documents to this office:

Program: Non-15,
Facility Name: Whitehawk Ranch

WDID: 5A321018001
Order: 2014-0153-DWQ-R5194

Please note that WDRs Order No. 92-127 is proposed to be rescinded at the 18/19 February 2016 meeting of the Central Valley Water Board. Upon rescission of your individual WDRs, coverage for your facility under the General Order shall become applicable subject to this Notice of Applicability.

If you have any questions regarding submitting an updated report of waste discharge, making changes to your permitted operations, compliance or enforcement please contact Ron S. Falkowski at (530) 224-3227, rsfalkowski@waterboards.ca.gov, or the footer address.


(for) Pamela C. Creedon
Executive Officer

RSF:reb

Attachments: Attachment A - Site Location Map
Technical Memorandum
Monitoring & Reporting Program (Discharger Only)
General Order 2014-0153-DWQ (Discharger Only)

cc list on next page

Tom Vannoy
Whitehawk Ranch MWC

- 4 -

9 December 2015

cc (w/o enc.): Gordon Innes, State Water Board, Sacramento
Plumas County Environmental Health Department, Quincy
Patrick Pulupa, SWRCB, Office of Chief Counsel, Sacramento

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